

25STCV33983 25STCV33983

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Case Number: 25STCV33983 Hearing Date: August 13, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 13, 2026

Case Name: Spigen, Inc. v. Genesis Motor

America, LLC, et al.

Case

No.: 25STCV33983

Matter: Motion for Attorney Fees

Moving

Party: Plaintiff Spigen Inc.

Responding Party: Defendant Genesis Motor America

Tentative

Ruling: Plaintiff Spigen Inc.'s motion

is granted in part and denied in part.

Plaintiff Spigen

Inc. ("Plaintiff") filed this action against Defendants Genesis Motor

America ("GMA"), GENSM, LLC, and Does 1 through 50. The Complaint alleged two

causes of action for: (1) violation of Civil Code section 1793.2, subdivision

(d); and (2) breach of implied warranty of merchantability.

Plaintiff

filed a motion for attorney's fees. GMA opposes.

Legal Standard

Where the

buyer of a vehicle prevails in an action under the Song-Beverly Act, he "shall be allowed by the court to recover . . . a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred" (Civ. Code, § 1794, subd. (d).)

"[T]he

starting point of every fee award . . . must be a calculation of the attorney's services in terms of the time he has expended on the case. Anchoring the analysis to this concept is the only way of approaching the problem that can claim objectivity, a claim which is obviously vital to the prestige of the bar and the courts." (In re Vitamin Cases (2003) 110 Cal. App. 4th 1041, 1058, [citation omitted].) "[T]he primary method for establishing the amount of 'reasonable' attorney fees is the lodestar method. The lodestar (or touchstone) is produced by multiplying the number of hours reasonably expended by counsel by a reasonable hourly rate." (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal. App. 4th 819, 833 (Thayer).) Under this approach, a base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48; Serrano v. Unruh (1982) 32 Cal.3d 621, 639 (Serrano).) A fee request that appears unreasonably inflated is a special circumstance that permits the trial court to reduce the award or deny it altogether. (Serrano, supra, 32 Cal. 3d at p. 635.)

Analysis

Plaintiff

requests fees in the amount of \$20,661.72 in attorney's fees, plus \$1,800 for Plaintiff to read Defendant's opposition and file a reply for the current motion. Plaintiff also requests \$921.72 in costs.

Reasonableness

of Plaintiff's Counsel's Rates

“A

prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817–818 (Robertson).) “[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).)

Plaintiff

requests that the Court accept Counsel Alex Cha’s (“Counsel”) \$600 hourly rate. (Cha Decl., ¶ 13.) However, Counsel does not provide the Court with any evidence to support his hourly rate is reasonable. In Plaintiff’s moving papers and reply, it asserts that Counsel has 25 years of experience, but this assertion is not made in Counsel’s declaration. (Mot., 7:4-5.) Moreover, other rulings where Counsel’s rate was granted in not binding in this Court. Thus, without evidence to support the demand for a \$600 hourly rate, the Court will reduce Counsel’s hourly rate to \$450 based on the facts of the case and the Court’s knowledge of what a reasonable hourly rate is for these types of cases.

Thus, the Court reduces

Counsel’s hourly rate from \$600 to \$450. The Court imposes a total reduction of \$4,485.

Reasonableness

of Plaintiff’s Counsel’s Hours

The Court

must base the attorneys’ fees on the “actual time expended on the case

as long as such fees

are reasonably incurred—both from the standpoint of time spent and the amount charged.” (Robertson, supra, 144 Cal.App.4th at p. 817.) The

Court must ascertain “whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.” (Ibid.)

Plaintiff

contends that Counsel spent 29.9 hours to litigate its case.

In

opposition, GMA argues that the number of hours requested is unreasonable and excessive because the several entries were excessive, some hours have not been earned, and other entries are not recoverable.

As an initial

matter, Plaintiff does not present the Court with any argument that its case was novel or complex that would justify the amount of hours requested. The case also lasted six months, and no substantial motions were filed in this action or vehicle inspection conducted. Plaintiff filed several entries for initial consultations with Plaintiff as a "potential client" and execution of the attorney-client agreement. (Cha Decl., Ex. B.) These fees cannot be imposed on Defendant; thus, the Court reduces the amount by \$2,040.

GMA also

disputes Plaintiff's entries for drafting the Complaint and service of the Complaint because the Complaint was only four pages and two causes of action. (Compl., 1:1-4:26.)

In reply,

Plaintiff argues that even if Counsel uses a template, time is still needed to update the Complaint with the new facts.

The Court

finds that the amount requested for the drafting, research, and service of the Complaint is excessive; therefore, the Court imposes a reduction of \$150.

Additionally, there are several administrative entries at Counsel's \$600 hourly rate. The Court finds that the hourly rate for the administrative entries is unreasonably high. To address this issue, the Court imposes a reduction of \$660.

The Court finds

that GMA's arguments about unearned fees are irrelevant since Plaintiff has reviewed GMA's opposition, filed a reply, and will attend the hearing on its motion.

Therefore, the
Court will impose a total reduction of \$3,350.

Costs

Plaintiff requests \$921.72 for costs
and expenses incurred in connection with the action.

The costs
requested are recoverable. (Code Civ. Proc., 1033.5.) The Court finds
Plaintiff's request for costs is reasonable.

Thus, the Court grants Plaintiff's
request for costs.

Conclusion

Plaintiff's motion for
attorneys' fees is granted in part and denied in part. Plaintiff is awarded
fees in the total amount of \$15,126.72. Plaintiff's request for costs is
granted in its \$921.72
entirety.